

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - MP3 player

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Federal Law:

FCC regulations for radio frequency devices

Some electronic products will be considered an "intentional radiator" under Federal Communication Commission (FCC) rules. Intentional radiators are defined as any "device that intentionally generates and emits radio frequency energy by radiation or induction." [47 C.F.R. § 15.3\(o\)](#). According to [FCC guidance](#), this includes products that contain Bluetooth or WiFi connectivity. If the MP3 player uses Bluetooth, ANT+ or similar wireless connectivity, it will almost certainly be considered an intentional radiator. See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators. Note that where that card refers to Bluetooth specifically, it is equally applicable to all other "intentional radiators."

Note, however, that if the MP3 player is not considered an "intentional radiator," it would almost certainly be considered an "unintentional radiator." An unintentional radiator is defined as "a device that intentionally generates radio frequency energy [Electromagnetic energy at any frequency in the radio spectrum between 9 kHz and 3,000,000 MHz] for use within the device, or that sends radio frequency signals by conduction to associated equipment via connecting wiring, but which is not intended to emit RF energy by radiation or induction." [47 C.F.R. § 15.3\(z\)](#). According to [FCC guidance](#), the majority of modern electronic products that are not considered "intentional radiators" will be regulated as "unintentional radiators." For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

Federal Law (Battery Charging Systems): The U.S. Department of Energy has certain energy efficiency requirements for Battery Charging Systems, defined as "a device that charges batteries for consumer products, including battery chargers embedded in other consumer products." To the extent the products in this category are used to charge batteries, they will be considered "battery chargers." [10 C.F.R. § 430.2](#) See the Sun Charger, Electrical Charger, USB Charger card for additional information on this line of requirements.

California (Batteries and CEC Battery Charging System):

Some of the products in this category may include a regulated "battery charging system" (BCS). BCS are defined under California law as "all rechargeable batteries or devices incorporating a rechargeable battery and the chargers used with them." [20 Cal. Code Regs. §1602](#). Please see the Sun Charger, Electrical Charger, USB Charger card for potentially applicable definitions and information re federal preemption of certain CA Appliance Efficiency requirements.

Some of the products in this category may also include batteries. Please see the Batteries card for relevant federal and state definitions.

Massachusetts Law (mercury-added products): No person may sell or distribute a mercury-added product in Massachusetts unless the manufacturer has created and filed with the Massachusetts Department of Environmental Protection a collection plan for end-of-life mercury-added products, including a manufacturer take-back system or a recycling plan, the requirements of which are detailed in the regulations ([MGL 21H, 310 CMR 75](#)). A "mercury-added product" is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices. Every manufacturer of mercury-added products sold in Massachusetts is financially responsible for the collection and recycling systems and must pay an annual registration fee. These laws do not apply to mercury-added button cell batteries; mercury-added formulated products intended to be totally consumed in use, such as reagents, cosmetics, pharmaceuticals and other laboratory chemicals; or products where the only mercury contained in the product comes from a removable mercury-added button cell battery or a mercury-added lamp.

New York Law (mercury-added products): A "mercury-added consumer product" is "any device or material into which elemental mercury or mercury compounds are intentionally added during such device's or material's formulation or manufacture, and in which the continued presence of mercury is required to provide a specific characteristic, appearance or quality, or to perform a specific function. Such term shall include, but not be limited to mercury-containing: . . . (b) thermometers . . . (d) medical or scientific instruments; (e) electrical relays and other electrical devices; (f) lamps; and (g) batteries sold to consumers, not including button batteries." ([Environmental Conservation Law § 27-2101](#)).

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California (electronics recycling): California has provisions similar to EU RoHS and EU WEEE for "covered electronic devices" defined to include electronic products with a screen size of greater than 4 inches measured diagonally, which are capable of playing a moving image (video display devices). It does not appear that Decathlon MP3 players meet this definition, hence the requirements of the California Electronic Waste Recycling Act do not apply. Program overview <https://calrecycle.ca.gov/electronics/>

Illinois Law (electronics takeback): Illinois has takeback requirements for the following categories of covered electronic devices:

- Computers and small-scale servers;
- Computer monitors;
- Televisions;
- Printers, facsimile machines and scanners;
- Digital video disc players, digital video disc records and videocassette recorders;
- Video game consoles;
- Digital converter boxes, cable receivers and satellite receivers; and
- Electronic keyboards, electronic mice and portable digital music players that have memory capability and are battery powered.

Manufacturer requirements, including registration, fees, reporting, and takeback, are summarized here: <https://epa.illinois.gov/topics/waste-management/materials-management/electronics-recycling1/manufacturers.html>

Illinois (electronics recycling): "[Covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. 415 ILCS 151](#). Note that this law is repealed on December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). The manufacturer's name must also be permanently affixed to, and readily visible on, the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

(1) a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

(2) the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year. [415 ILCS 151/1-30\(a\)](#).

It appears that an MP3 player would fall within the Illinois definition of a covered electronic device.

Maine (electronic waste):

"Covered electronic device" means a desktop printer, a video game console, a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device with a screen that is greater than 4 inches measured diagonally and that contains one or more circuit boards. "Covered electronic device" does not include an automobile; a household appliance; a large piece of commercial or industrial equipment, such as commercial medical equipment, that contains a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device that is contained within, and is not separate from, the larger piece of equipment; other medical devices as that term is defined under the Federal Food, Drug, and Cosmetic Act; or a cellular telephone subject to section 2143. [ME Stat. Tit. 38, §1610\(2\)\(C\)](#). It appears that an MP3 player would may fall within the definition of "covered electronic equipment" under the Maine law, depending on how large the screen is..

D. Covered electronic device manufacturers are subject to the requirements of this paragraph.

(1) Manufacturers shall pay the reasonable operational costs of the consolidator attributable to the handling of all covered electronic devices received at consolidation facilities in this State, the transportation costs from the consolidation facility to a licensed recycling and dismantling facility and the costs of recycling. "Reasonable operational costs" includes the costs associated with ensuring that consolidation facilities are geographically located to conveniently serve all areas of the State as determined by the department. The recycling of each type of covered electronic device must be funded by allocating the cost of the program among the manufacturers selling covered electronic devices in the State on a basis proportional to the manufacturer's national market share of the type of covered electronic device. The department shall annually determine each manufacturer's recycling share based on readily available national market share data. If the department determines that a manufacturer's market share is less than 1/10 of 1%, the department may determine that market share de minimis. A manufacturer whose market share is determined de minimis by the department is not responsible for payment of a pro rata share for the corresponding billing year. The total market shares determined de minimis by the department must be proportionally allocated to and paid for by the manufacturers that have 1/10 of 1% or more of the market of each type of covered electronic device.

(2) Each manufacturer shall work cooperatively with consolidators to ensure implementation of a practical and feasible financing system. Within 90 days of receipt of an invoice, a manufacturer shall reimburse a consolidator for allowable costs incurred by that consolidator.

[ME Stat. Tit. 38, §1610\(5\)](#).

Manufacturer Responsibilities and Resources

According to the Maine Department of Environmental Protection website, "Maine's E-Waste Law sets up an Extended Producer Responsibility system to facilitate the recycling of Covered Electronic Devices from Covered Entities. The definition of Covered Electronic Devices (CED) includes televisions, portable DVD players, game consoles, computer monitors, laptops, tablets, e-readers, 3D printers, desktop and portable printers, digital picture frames, and other visual display devices with screens of at least 4 inches measured diagonally and one or more circuit boards. Covered Entities are households, NGOs with 100 or fewer employees, k-12 schools, and businesses with 100 or fewer employees, so products designed for use by businesses are included in the law.

Maine law requires three things of CED manufacturers (defined as the brand owner or, if the brand owner has no U.S. presence, the first U.S. importer of the device):

1. affix a permanent label to each device identifying the manufacturer;
2. register annually and pay an annual registration fee; and

3. pay for recycling costs associated with their products.

Registrations: Manufacturers must register with Maine DEP before offering a CED for sale in or into Maine; if companies are selling online or into the U.S., a CED could be sold or resold into Maine. Companies must re-register by April 1 each year thereafter. Annual registration includes the reporting of total national sales data: all sales of covered products, regardless of where in the US they were sold or who bought them. Registration fees are either \$3000, \$750, or \$0 depending on a manufacturer's market share. Register by filling out our [registration form](#) (PDF) and returning it to Maine DEP. Manufacturers can also fill out the optional [credit form](#), which could result in lower recycling costs (see recycling costs discussion below). We also accept registrations via the [ERCC portal](#) (off-site), which streamlines registration in multiple states.

Recycling: The Maine program uses state [approved consolidators](#) (PDF) to collect, sort, and, often, recycle electronics, so manufacturers are not required to make these arrangements.

Recycling costs: Recycling is billed according to a manufacturer's current market share of a particular product type. All manufacturers with more than 0.1% national market share for a product type are given a [recycling share](#) (PDF) based on their market share. The approved consolidators bill manufacturers according to each manufacturer's assigned recycling share at a rate approved by the Department which accounts for geographic differences in collection sites served. Manufacturers can lower their recycling shares by selling EPEAT certified electronics or running their own takeback programs." Maine [Department of Environmental Protection website](#).

Cathode ray tube disposal: Beginning 9 months after the department adopts rules pursuant to section 1610, subsection 5, paragraph D, subparagraph (1), a person may not dispose of a cathode ray tube in a solid waste disposal facility. This subsection may not be construed to affect existing laws, rules or regulations governing disposal of cathode ray tubes in effect prior to the adoption of rules pursuant to section 1610, subsection 5, paragraph D, subparagraph (1). [ME Stat. Tit 38, §1306\(4\)](#).

New Jersey (electronics recycling): For purposes of New Jersey's laws pertaining to electronic equipment recycling, "covered electronic device" is defined to include "a desktop or personal computer, computer monitor, portable computer, or television sold to a consumer." ([N.J.S.A. § 13:1E-99.95](#)). To qualify as computers or televisions, the device must have a screen greater than four inches when measured diagonally. It does not appear that Decathlon's MP3 players are in scope of the NJ electronics recycling law, hence the recycling, registration, reporting and labeling requirements of the NY law should not apply to these products. (See [N.J.S.A. § 13:1E-99.94 et seq.](#)).

New York (electronics recycling): New York's electronic waste program applies to the following:

- Computers (including laptops, desktops, tablets and e-readers)
- Televisions
- Cathode ray tubes
- Computer peripherals (including any cable, cord, or wiring accompanying the computer peripheral.)
- - Monitors
 - Electronic keyboards
 - Electronic mice or similar pointing devices
 - Facsimile machines, document scanners, and printers (only those intended for use with a computer and weighing less than 100 lbs.)
- Small electronic equipment (including any cable, cord, or wiring accompanying the small electronic equipment.)
- - VCRs
 - Digital video recorders (DVRs)
 - Portable digital music players
 - DVD players (including projectors with DVD player capabilities intended for home-use)
 - Digital converter boxes
 - Cable or satellite receivers (including digital media receivers)
 - Electronic or video game consoles (including both handheld devices and those intended for use with a video display device)
- Small scale servers

Under the NY law, "covered electronic equipment" does not include: any motor vehicle or any part thereof; camera or video camera; portable or stationary radio; household appliances such as clothes washers, clothes dryers, refrigerators, freezers, microwave ovens, ovens, ranges or dishwashers; equipment that is functionally or physically part of a larger piece of equipment intended for use in an industrial, research and development or commercial setting; security or anti-terrorism equipment; monitoring and control instrument or system; thermostat; hand-held transceiver; telephone of any type; portable

digital assistant or similar device; calculator; global positioning system (GPS) receiver or similar navigation device; a server other than a small-scale server; a cash register or retail self checkout system; a stand-alone storage product intended for use in industrial, research and development or commercial settings; commercial medical equipment that contains within it a cathode ray tube, a flat panel display or similar video display device, and is not separate from the larger piece of equipment; or other medical devices as that term is defined under the Federal Food, Drug and Cosmetic Act. [N.Y. Env't Conserv. § 27-2601](#).

Additional information on the NY law, including registration, reporting, marking covered devices with manufacturer name, and fees, is available at <http://www.dec.ny.gov/chemical/66845.html>. Manufacturers may meet their take back obligations through individual or collective electronic waste acceptance programs. Described in more detail below are requirements for:

- [manufacturers participating in an individual electronic waste acceptance program](#)
- [manufacturers participating in a collective electronic waste acceptance program](#)

Also available to manufacturers of CEE are answers to some of the most [frequently asked questions](#) regarding the [Act](#).

The program has several steps, including one time manufacturer registration (see certifications/registration portion of this card); submission of an electronic waste acceptance program plan that meets the requirements of the [Act](#); and submission of an annual report form; annual reporting fee; and recycling surcharge (if applicable). The annual reporting fee is \$3,000 and annual reports are due by March 1st of each year for the previous year. See this [guidance page](#) for additional information.

For purposes of New York's laws pertaining to electronic equipment recycling, "covered electronic equipment" is defined to include "small electronic equipment," which means "any portable digital music player that has memory capability and is battery-powered, video cassette recorder, a digital video disc player, digital video recorder, digital converter box, cable or satellite receiver, or electronic or video game console, and includes any cable, cord, or wiring permanently affixed to or incorporated into any such product." ([Environmental Conservation Law § 27-2601](#)). It appears that an MP3 player would fall within the definition of "covered electronic equipment" under the New York law.

Texas Law (electronic recycling): For purposes of Texas's laws pertaining to electronic equipment recycling, "computer equipment" means a "desktop or notebook computer and includes a computer monitor or other display device that does not contain a tuner." ([Tex. Health & Safety Code Ann. § 361.952](#)). Note that this definition includes tablet computers with screens larger than four inches when measured diagonally. ([30 Tex. Admin. Code § 328.135](#)). It does not appear that Decathlon MP3 players would fall within this definition, accordingly, these products would not be subject to the registration, recycling and other requirements in the Texas electronic recycling law. See [Tex. Health & Safety Code Ann. § 361.951 et seq.](#) and [30 Tex. Admin. Code § 328.131 et seq.](#)

Washington Law (electronic recycling): Manufacturers of and retailers that sell certain "covered electronic products (CEPs)" in Washington must comply with registration, labeling, fee, and recycling requirements ([RCW 70.95N](#), [WAC 173-900](#)). CEPs include 1) any monitor having a viewable area greater than four inches when measured diagonally, 2) a laptop or portable computer, and 3) any video display device having a viewable area greater than four inches when measured diagonally. Certain products are excluded, including medical devices, replacement parts for computers or vehicles, computers contained in appliances, and cell phones. Based on the Washington CEP definition, it does not appear that Decathlon MP3 players would be covered under the WA electronic recycling law.

Comments

Comments

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law:

Country of Origin Marking Requirements: All products are required to comply with country of origin marking regulations. See [19 U.S.C. § 1304](#); [19 CFR § 134.11](#); and importation section of this card. When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

FCC Voluntary Labeling Program: The FCC has established a voluntary labeling program for wireless consumer Internet of Things (IoT) products. The FCC's definition of an IoT device is: (1) an internet-connected device capable of intentionally emitting RF energy that has at least one transducer (sensor or actuator) for interacting directly with the physical world, coupled with (2) at least one network interface (e.g., Wi-Fi, Bluetooth) for interfacing with the digital world. 47 CFR 8.203(i). Some of Decathlon's products may be eligible for the voluntary labeling program. 47 CFR 8.205. Applicants for the voluntary labeling program must submit their products for testing and certify in their application that the applicant has taken every reasonable measure to create a securable product. 47 CFR 8.208. If the application is accepted, the FCC will allow the product to use the Cyber Trust Mark. 47 CFR 8.209.

California Law (batteries and CEC Battery Charging System): If this product contains batteries, please see the corresponding section of the Batteries card for additional California requirements. There are also specific requirements for battery charging systems and external power supplies under California law; please see the corresponding section of the "Sun Charger, Electrical Charger, USB Charger" card for a description of these requirements, if applicable.

Illinois (electronics recycling): "Covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. [415 ILCS 151](#). Note that this law is repealed on December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). The manufacturer's name must also be permanently affixed to, and readily visible on, the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

(1) a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

(2) the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year. [415 ILCS 151/1-30\(a\)](#).

Massachusetts Law (mercury-added products): No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows ([MGL 21H](#), [310 CMR 75](#)). The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. Manufacturers of products that contain an irremovable mercury-containing lamp used for backlighting shall meet the product labeling requirements of this section by placing the label on the product or its care and use manual. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Before a mercury-added product is sold in Massachusetts, the manufacturer must 1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or 2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of "mercury-added consumer products" (see definitions section) must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

New York (electronics recycling): "Covered electronic equipment" (which would include MP3 players; see the definition above) must have a visible, permanent label clearly identifying the product's manufacturer. ([Environmental Conservation Law § 27-2609](#)).

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Federal Law:

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for additional California requirements. There are also specific requirements for battery charging systems and external power supplies under California law; please see the corresponding section of the "Sun Charger, Electrical Charger, USB Charger" card for a description of these requirements, if applicable.

Massachusetts Law (mercury-added products): In addition to the label on the product, the packaging for a mercury-added product must also be labeled, except when the product label can easily be viewed through the packaging, to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to be managed properly at the end of its useful life ([MGL 21H, 310 CMR 75](#)). The label must be consistent with the product labeling requirements.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ? In which format, do we have to deliver the instruction manual to our customers ?

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

Warnings - General ones

Are general warnings required ? If yes, which ones ?

General instructions or labels should identify all reasonably foreseeable hazards associated with a product and state the consequences of consumer actions explicitly. See CPSC, [Manufacturer's Guide to Developing Consumer Product Instructions](#) (October 2003).

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Illinois Law (lead): No one may sell any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law ([410 ILS 45](#)). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: "WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN." The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 CFR 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements. This requirement does not apply to any component part of a consumer electronic product, including, but not limited to, personal computers, audio and video equipment, calculators, wireless phones, game consoles, and handheld devices incorporating a video screen used to access interactive software and their associated peripherals, that is not accessible to a child through normal and reasonably foreseeable use of the product. A component part is not accessible if the component part is not physically exposed by reason of a sealed covering or casing and does not become physically exposed through reasonably foreseeable use and abuse of the product. Paint, coatings, and electroplating, singularly or in any combination, are not sufficient to constitute a sealed covering or casing. Coatings and electroplating are sufficient to constitute a sealed covering for connectors, power cords, USB cables, or other similar devices or components used in consumer electronics products.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Federal law does not require that a specific age range be specified, however, if the product would be more hazardous for children below a certain age (e.g., because of use or potential misuse), we recommend stating a minimum age to reduce potential liability for use by children below that age.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal Law

Country of Origin Marking Requirements: Failure to adhere to Country of Origin Marking Requirements may result in imposition of an additional 10% duty, withholding of release from U.S. Customs until properly marked, and reimbursement of expenses of customs officials overseeing same.

FCC Radio Frequency Devices: For details applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card. For details applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

See the "Batteries" card for further information on sanctions related to regulations applicable to some batteries.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. There are also specific requirements for battery charging systems under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties of up to \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the "Sun Charger, Electrical Charger, USB Charger" card for additional details.

Illinois Law (lead): A manufacturer or importer who fails to properly label lead-bearing substances subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well ([410 ILCS 45](#)).

Illinois (electronics recycling): A retailer who violates these provisions is liable for a civil penalty of \$7,000 for the violation and an additional \$1,000 for each day the violation continues ([415 ILCS 151/1-50](#)). A manufacturer that is not registered with the Agency or has not paid the registration fee is liable for a civil penalty not to exceed \$10,000 for the violation and an additional civil penalty not to exceed \$10,000 for each day the violation continues. Manufacturers who fail to develop and maintain a consumer education program are liable for a civil penalty up to \$5,000.

Massachusetts Law (mercury-added products): A violation of this law may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occur is a separate offense ([MGL 21H](#)).

New Jersey (electronics recycling): [For purposes of New Jersey's laws pertaining to electronic equipment recycling, "covered electronic device" is defined to include "a desktop or personal computer, computer monitor, portable computer, or television sold to a consumer." \(N.J.S.A. § 13:1E-99.95\)](#). To qualify as computers or televisions, the device must have a screen greater than four inches when measured diagonally. It does not appear that any products in this category meet this definition, hence the recycling, registration, reporting and labeling requirements of the NY law should not apply to these products. (See [N.J.S.A. § 13:1E-99.94 et seq.](#)). Electronics Manufacturers (either individually or as part of a group) are required to submit Collection Plans each year for the Department's review and approval. Generally, Collection Plans are required to be submitted by June 1 to describe the Manufacturer's (or group's) collection of electronics waste for the following calendar year (Example: 2014 Collection Plans are due June 1, 2013). These Plans are now required to be submitted electronically via NJDEP Online. [REQUIRED CONTENT OF A COLLECTION PLAN](#). A manufacturer that chooses to submit a collection plan as part of a group shall, at least 20 days prior to the submittal of each group collection plan, participate in the preparation and submission to the Department of a Group Designation Form. [GROUP DESIGNATION FORM](#)

The collection obligation for manufacturers of covered electronic devices (other than televisions) is the total weight of covered electronic devices that a manufacturer is responsible to collect, transport and recycle each program year. See [here](#) for a posting of annual collection obligations.

New York (electronics recycling):

Violation of New York's law regarding labeling "covered electronic equipment" is punishable with a fine of up to \$1,000 for the first violation, \$2,500 for the second violation, and \$5,000 for third and subsequent violations. ([Environmental Conservation Law § 71-2729](#)).

New York (mercury-added consumer products): Violation of New York's mercury-added consumer products labeling rules is punishable by a fine of up to \$100 for the first violation and up to \$500 for additional violations. ([Environmental Conservation Law § 71-2724](#)).

Comments

Comments

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

For requirements applicable to products that contain batteries, please see the "Batteries" card.

California Law

Electronic products with a screen size of greater than 4 inches measured diagonally, which are capable of playing a moving image (video display devices), may be subject to the California Electronic Waste Recycling Act unless they meet an exemption. It does not appear that Decathlon offers such products, but it is referenced here in the event that this becomes relevant for future offerings. The law requires several things: (1) restricts the hazardous materials that may be part of the product (material restrictions are based on EU RoHS, so if the product is RoHS compliant than it complies with the material restrictions of this law;]

(2) Retailer must collect an advance recovery fee (paid by consumer at time of sale) and send the fee to the [CA Department of Tax and Fee Administration](#) to fund the recovery and recycling of the devices by qualified entities;

(3) requires manufacturers to report on sales volume and hazardous substances used (if any).

Statute: [CA Pub. Res. Code 42464 - 42486](#); [California Health & Safety Code 25214.9 to 25214.10.2](#)

Regulations: <https://www2.calrecycle.ca.gov/Docs/Web/117057>

Program overview <https://calrecycle.ca.gov/electronics/> , <https://calrecycle.ca.gov/Electronics/CEW/>

Illinois (electronics recycling): "Covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. [415 ILCS 151](#). Note that this law is repealed on December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). The manufacturer's name must also be permanently affixed to, and readily visible on, the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

(1) a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

(2) the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year. [415 ILCS 151/1-30\(a\)](#).

Maine (electronic waste):

"Covered electronic device" means a desktop printer, a video game console, a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device with a screen that is greater than 4 inches measured diagonally and that contains one or more circuit boards. "Covered electronic device" does not include an automobile; a household appliance; a large piece of commercial or industrial equipment, such as commercial medical equipment, that contains a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device that is contained within, and is not separate from, the larger piece of equipment; other medical devices as that term is defined under the Federal Food, Drug, and Cosmetic Act; or a cellular telephone subject to section 2143. [ME Stat. Tit. 38, §1610\(2\)\(C\)](#). It appears that an MP3 player may fall within the definition of "covered electronic equipment" under the Maine law, depending on the size of the screen.

D. Covered electronic device manufacturers are subject to the requirements of this paragraph.

(1) Manufacturers shall pay the reasonable operational costs of the consolidator attributable to the handling of all covered electronic devices received at consolidation facilities in this State, the transportation costs from the consolidation facility to a licensed recycling and dismantling facility and the costs of recycling. "Reasonable operational costs" includes the costs associated with ensuring that consolidation facilities are geographically located to conveniently serve all areas of the State as determined by the department. The recycling of each type of covered electronic device must be funded by allocating the cost of the program among the manufacturers selling covered electronic devices in the State on a basis proportional to the manufacturer's national market share of the type of covered electronic device. The department shall annually determine each manufacturer's recycling share based on readily available national market share data. If the department determines that a manufacturer's market share is less than 1/10 of 1%, the department may determine that market share de minimus. A manufacturer whose market share is determined de minimus by the department is not responsible for payment of a pro rata share for the corresponding billing year. The total market shares determined de minimus by the department must be proportionally allocated to and paid for by the manufacturers that have 1/10 of 1% or more of the market of each type of covered electronic device.

(2) Each manufacturer shall work cooperatively with consolidators to ensure implementation of a practical and feasible financing system. Within 90 days of receipt of an invoice, a manufacturer shall reimburse a consolidator for allowable costs incurred by that consolidator.

[ME Stat. Tit. 38, §1610\(5\)](#).

Manufacturer Responsibilities and Resources

According to the Maine Department of Environmental Protection website, "Maine's E-Waste Law sets up an Extended Producer Responsibility system to facilitate the recycling of Covered Electronic Devices from Covered Entities. The definition of Covered Electronic Devices (CED) includes televisions, portable DVD players, game consoles, computer monitors, laptops, tablets, e-readers, 3D printers, desktop and portable printers, digital picture frames, and other visual display devices with screens of at least 4 inches measured diagonally and one or more circuit boards. Covered Entities are households, NGOs with 100 or fewer employees, k-12 schools, and businesses with 100 or fewer employees, so products designed for use by businesses are included in the law.

Maine law requires three things of CED manufacturers (defined as the brand owner or, if the brand owner has no U.S. presence, the first U.S. importer of the device):

1. affix a permanent label to each device identifying the manufacturer;
2. register annually and pay an annual registration fee; and
3. pay for recycling costs associated with their products.

Registrations: Manufacturers must register with Maine DEP before offering a CED for sale in or into Maine; if companies are selling online or into the U.S., a CED could be sold or resold into Maine. Companies must re-register by April 1 each year thereafter. Annual registration includes the reporting of total national sales data: all sales of covered products, regardless of where in the US they were sold or who bought them. Registration fees are either \$3000, \$750, or \$0 depending on a manufacturer's market share. Register by filling out our [registration form](#) (PDF) and returning it to Maine DEP. Manufacturers can also fill out the optional [credit form](#), which could result in lower recycling costs (see recycling costs discussion below). We also accept registrations via the [ERCC portal](#) (off-site), which streamlines registration in multiple states.

Recycling: The Maine program uses state [approved consolidators](#) (PDF) to collect, sort, and, often, recycle electronics, so manufacturers are not required to make these arrangements.

Recycling costs: Recycling is billed according to a manufacturer's current market share of a particular product type. All manufacturers with more than 0.1% national market share for a product type are given a [recycling share](#) (PDF) based on their market share. The approved consolidators bill manufacturers according to each manufacturer's assigned recycling share at a rate approved by the Department which accounts for geographic differences in collection sites served. Manufacturers can lower their recycling shares by selling EPEAT certified electronics or running their own takeback programs." Maine [Department of Environmental Protection website](#).

Cathode ray tube disposal: Beginning 9 months after the department adopts rules pursuant to section 1610, subsection 5, paragraph D, subparagraph (1), a person may not dispose of a cathode ray tube in a solid waste disposal facility. This subsection may not be construed to affect existing laws, rules or regulations governing disposal of cathode ray tubes in effect prior to the adoption of rules pursuant to section 1610, subsection 5, paragraph D, subparagraph (1). [ME Stat. Tit 38, §1306\(4\)](#).

Massachusetts Law (mercury-added products): No person may sell or distribute a mercury-added product in Massachusetts unless the manufacturer has created and filed with the Massachusetts Department of Environmental Protection a collection plan for end-of-life mercury-added products, including a manufacturer take-back system or a recycling plan, the requirements of which are detailed in the regulations ([MGL 21H, 310 CMR 75](#)). A "mercury-added product" is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices. Every manufacturer of mercury-added products sold in Massachusetts is financially responsible for the collection and recycling systems and must pay an annual registration fee. These laws do not apply to mercury-added button cell batteries; mercury-added formulated products intended to be totally consumed in use, such as reagents, cosmetics, pharmaceuticals and other laboratory chemicals; or products where the only mercury contained in the product comes from a removable mercury-added button cell battery or a mercury-added lamp.

New York Law: All manufacturers (including importers) of "covered electronic equipment" (see the definition above) must comply with New York's electronics recycling laws. Those requirements involve, in pertinent part, registering with the New York Department of Environmental Conservation, collecting electronic waste for recycling and/or reuse, and submitting annual reports. ([Environmental Conservation Law §27-2603, § 27-2605; § 27-2617](#)).

Requirements applicable to manufacturers/importers of covered electronic equipment are detailed on the [manufacturers page](#).

If selling covered electronic equipment into the state of New York, Decathlon would also be subject to retailer requirements, detailed on [this page](#).

Under the New York statute, "covered electronic equipment" includes portable digital music players.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

None identified.

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

None identified.

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law

For requirements applicable to unintentional radiators, as defined, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, as defined, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries and battery chargers, please see the "Batteries" card.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the "Batteries" card for additional requirements. There are also specific energy efficiency requirements for battery charging systems under California law; please see the corresponding section of the "Sun Charger, Electrical Charger, USB Charger" card for a description of these requirements, if applicable.

[California Law \(Security of Connected Devices Law\)](#): As of January 2020, California law requires that all manufacturers equip "connected devices" with reasonable security features. The law defines "connected device" as "any device, or other physical object that is capable of connecting to the internet, directly or indirectly, and that is assigned an internet protocol address or Bluetooth address." CA Civ Code § [1798.91.05](#). The specifications are as follows:

(a) A manufacturer of a connected device shall equip the device with a reasonable security feature or features that are all of the following:

(1) Appropriate to the nature and function of the device.

(2) Appropriate to the information it may collect, contain, or transmit.

(3) Designed to protect the device and any information contained therein from unauthorized access, destruction, use, modification, or disclosure.

(b) Subject to all of the requirements of subdivision (a), if a connected device is equipped with a means for authentication outside a local area network, it shall be deemed a reasonable security feature under subdivision (a) if either of the following requirements are met:

(1) The preprogrammed password is unique to each device manufactured.

(2) The device contains a security feature that requires a user to generate a new means of authentication before access is granted to the device for the first time.

(c) A manufacturer of a connected device may elect to satisfy the requirements of subdivision (a) by ensuring the connected device does all of the following:

(1) Meets or exceeds the baseline product criteria of a NIST conforming labeling scheme.

(2) Satisfies a conformity assessment as described by a NIST conforming labeling scheme that includes a third-party test, inspection, or certification.

(3) Bears the binary label as described by a NIST conforming labeling scheme.

“NIST conforming labeling scheme” means a labeling scheme conforming to the Cybersecurity White Paper titled “Recommended Criteria for Cybersecurity Labeling for Consumer Internet of Things (IoT) Products” published by the National Institute of Standards and Technology (NIST) on February 4, 2022, including any revisions or successor publications.

CA Civ Code [§ 1798.91.04–06](#).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

[UL voluntary standards](#) are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

There is a voluntary standard related to protection provided by enclosures of other electrical equipment, including resistance to water intrusion. See [IEC 60529](#) Degree of Protection Provided by Enclosures.

Electrical aspects

What are requirements regarding electrical aspects ?

None identified.

Inflammability

Are there any specific requirements to ensure inflammability?

None identified.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators, if applicable.

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ?
Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

See the Chemical Substances Insert for additional information.

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Federal Law: None identified.

California Law:

CA Toxics in Packaging Prevention Act

The California Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), prohibits the production, sale, or promotion of packages or packaging components in which any of the metals cadmium, lead, mercury, or hexavalent chromium either (a) have been intentionally introduced, or (b) have a combined incidental presence greater than 100 parts per million by weight. A “package” is defined as any container providing a means of marketing, protecting, or handling a product, including unsealed receptacles such as crates, cups, wrapping films, and bags. A “packaging component” is defined as any individual assembled part of a package, including blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks, labels, dyes, pigments, adhesives, stabilizers, or any other additives. [Id. § 25214.12](#).

The Toxics in Packaging Prevention Act distinguishes between “manufacturers” of packages and packaging components, versus “purchasers” who purchase and take title to a package or packaging component for the purpose of packaging a product manufactured, distributed, or sold by the purchaser. [Id. § 25214.12](#). Decathlon would be a “purchaser” under this law. Packaging manufacturers are required to provide a Certificate of Compliance to the purchaser of the packaging stating that the package or packaging component is in compliance with the Toxics in Packaging Prevention Act. If the manufacturer does not provide a Certificate of Compliance, the purchaser must request it. Purchasers are required to retain Certificates of Compliance for as long as a package or packaging component is being used. DTSC may request these from purchasers at any time. [Id. § 25214.16](#); see DTSC Fact Sheet, [Toxics in Packaging: Information for Purchasers of Packaging](#) (Jan. 2009).

Penalties. Violations of the CA Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), are subject to administrative penalties, [id. § 25187](#), and civil penalties for intentional or negligent violations of \$25,000 per separate violation or per day of a continuing violation, [id. § 25189](#). Knowing and intentional violations are punishable by a criminal fine of not less than \$5,000 nor more than \$100,000, by imprisonment for not more than one year, or by both the fine and imprisonment. [Id. § 25214.22.1](#). Purchasers of packaging who offer their own products for sale in packaging that violates this law may assert an affirmative defense that they relied on a Certificate of Compliance from the packaging manufacturer, had no reason to know the packaging was not in compliance, and took immediate corrective action upon receiving a notice of violation from DTSC. This affirmative defense is not available if a purchaser has already been found in violation at least two times in the preceding three years. [Id. § 25214.22](#).

CA Rigid Plastic Packaging Container Program

The California Rigid Plastic Packaging Container Program, [14 CCR §§ 17943–17949](#), requires product manufacturers who sell products held in RPPCs to meet one of several compliance options. “Rigid plastic packaging container” (RPPC) generally means a plastic packaging container that is made entirely of plastic (except for incidental portions of the packaging), has a relatively inflexible shape or form, has a capacity between 8 ounces and 5 gallons, and is capable of at least one closure. Compliance options include:

- Making the RPPC with at least 25% post-consumer material;
- Reducing the RPPC’s weight by at least 10%, including relative to similar packaging;
- Concentrating the [formulated] product held in the RPPC by at least 10%;
- Establishing that the RPPC is routinely reused at least 5 times;
- Establishing that the RPPC is routinely returned and refilled at least 5 times; or
- Establishing that the RPPC is recycled at least 45% of the time.

Container manufacturers are required to provide product manufacturers a certification of compliance for any RPPCs sold. Product manufacturers known or found to use RPPCs receive a 90-day notice from CalRecycle of registration requirements. If CalRecycle selects a product manufacturer for the compliance certification process, the manufacturer will receive a one-year notice of certification requirements (meaning, you would be notified a year ahead that you would need to certify compliance in the following calendar year). See CalRecycle, [California’s Rigid Plastic Packaging Container \(RPPC\) Program](#) (Dec. 2015).

Penalties. Under the California RPPC Program, [14 CCR §§ 17943–17949](#), non-compliant product manufacturers may be assessed penalties of up to \$100,000. Violations may include, but are not limited to, failure to submit all required information, submitting incomplete information, or failing to comply with the law. Under the law, there is a three phase approach: (1) companies may be contacted by DTSC requesting that they register; (2) a small subset of the registered companies will receive a notice that they may be required to certify compliance the following calendar year; (3) a smaller subset of the notified companies will actually have to certify compliance with the CA RPPC requirements. Note: per [CalRecycle's webpage](#), have been no enforcement actions under this law since 2005.

CA Biodegradability Claims

[Cal. Pub. Res. Code §§ 42355–42358.5](#) restricts the use of “biodegradable,” “compostable,” and related claims about any plastic products or plastic packaging. It is unlawful to sell any product or packaging made of plastic — alone or in combination with other material — that is labeled “compostable,” “marine degradable,” “biodegradable,” “degradable,” “decomposable,” or in any other way implies that the item will break down, fragment, biodegrade, or decompose in a landfill or any other environment, unless the plastic product or plastic packaging meets the applicable standard of the following:

- [ASTM D6400](#) for compostable plastics; or
- [ASTM D6868](#) for biodegradable plastics used as coatings on paper and other compostable substrates.

See California State Attorney General, [Quick Reference Guide to “Biodegradable,” “Compostable,” and Related Claims on Plastic Products in California](#) (Dec. 2012).

Penalties (CA Biodegradability Claims): Violations of [Cal. Pub. Res. Code §§ 42355–42358.5](#) are subject to civil penalties of \$500 for the first violation of this chapter, \$1,000 for the second violation, and \$2,000 for the third and any subsequent violation.

CA Commodity Packaging and Labeling

Under California’s Fair Packaging and Labeling Act, [Cal. Bus. & Prof. Code §§ 12601–12615.5](#), no packaged “commodity” may be sold or distributed unless the package meets certain labeling requirements, including stating net quantity of the commodity, and generally does not have any unnecessary empty space (“slack fill”) that might make a consumer think the package contains more of the commodity than it actually does. The Fair Packaging and Labeling Act does not define “commodity,” but it is generally understood to mean bulk materials that are not widely differentiated by brand, such as wheat, oil, or coffee). See CDFA, [Quality Control: Business Information Guide](#).

Penalties: Violations of California’s Fair Packaging and Labeling Act, [Cal. Bus. & Prof. Code §§ 12601–12615.5](#), are punishable by a criminal fine of not less than \$25 and not more than \$500, or by imprisonment for up to six months, or both.

CA Extended Producer Responsibility

On June 30, 2022, the governor signed [SB 54 \(Allen, Chapter 75, Statutes of 2022\)](#) that requires by 2032:

- 100% of packaging in the state to be recyclable or compostable
- 25% cut in plastic packaging
- 65% of all single-use plastic packaging be recycled

To stay informed on the latest information on the Packaging EPR rulemaking process and issues, sign-up for email updated by joining the [SB 54: Plastic Pollution Prevention and Packaging Producer Responsibility Act \(Packaging EPR\) listserv](#) or visit [this webpage](#).

Penalties. The department may issue a notice of violation to, and impose an administrative civil penalty not to exceed fifty thousand dollars (\$50,000) per day per violation on, any entity not in compliance with this chapter or any of the regulations

the department adopts to implement this chapter, unless the entity meets the criteria of paragraph (5) of subdivision (a) of Section 42061, in which case the civil penalty shall not exceed twenty-five thousand dollars (\$25,000) per day per violation. Before determining whether to assess a penalty, the department may allow a producer or a PRO to develop and submit a corrective action plan to the department detailing how and when the producer or PRO will come into compliance. Cal. Pub. Res. Code § [42081](#).

Illinois Law

IL Heavy Metals in Packaging (SCOPE): A "package" means a container providing a direct means of marketing, protecting, or handling a product, and includes a product unit package, an intermediate package, or a shipping container as defined by ASTM D996 ([415 ILCS 5/21.5](#)). "Package" also includes such unsealed consumer product receptacles as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags, and tubs. "Packaging component" means any individual assembled part of a package including, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, coatings, closure, ink, and labeling; except that coatings shall not include a thin tin layer applied to base steel or sheet steel during manufacturing of the steel or package ([415 ILCS 5/21.5](#)).

(PROHIBITION/REQUIREMENTS): No product may be offered for sale by its manufacturer or distributor in Illinois in a package that includes any ink, dye, pigment, adhesive, stabilizer, or other additive that contains lead, cadmium, mercury, or hexavalent chromium that has been intentionally introduced during manufacturing or distribution ([415 ILCS 5/21.5](#)). In addition, no package, packaging component, or product in a package may be offered for sale if the sum of the concentration levels of lead, cadmium, mercury, or hexavalent chromium present in the package or packaging component exceeds 100 ppm by weight. Packaging components including strapping, seals, fasteners, and other industrial packaging components intended to protect, secure, close, unitize, or provide pilferage protection for a product destined for commercial use are excluded from this regulation. The manufacturer or supplier of the packaging must provide the package's distributor with a certificate of compliance stating that a package or packaging component complies with these requirements.

Penalties: Violators may be subject to a civil penalty up to \$50,000 for the violation and an additional civil penalty up to \$10,000 per day during which the violation continues ([415 ILCS 5/42](#)).

Maine Law

Reduction of Toxics in Packaging

"Package" means a container used in marketing, protecting or handling a product. "Package" includes a unit package and a shipping container defined by the American Society for Testing and Materials in its annual book of standards as ASTM, D996; a food package; and unsealed receptacles such as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags and tubs.

"Packaging component" means any individual assembled part of a package such as, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks and labels. Tin-plated steel that meets the American Society for Testing and Materials specification A-623 must be considered as a single package component. Electrogalvanized coated steel and hot-dipped coated galvanized steel that meets the American Society for Testing and Materials specifications A-525 and A-879 must be treated in the same manner as tin-plated steel.

The act restricts the concentration levels of the following heavy metals contained in the packaging and packaging components to be less than 0.01% by weight:

·Lead

·Mercury

·Cadmium

·Hexavalent chromium

This act prohibits sales of food packaging containing phthalates and PFAS in Maine. This requirement does not apply to manufacturers of food or beverage products that have annual national sales of all food and beverage products of less than one billion dollars.

A manufacturer that is exempted from the phthalates and PFAS prohibition must submit a written request to the Department of Environmental Protection explaining that he or she fulfills the exemption requirements in this section.

The Department will decide whether they approve the exemption or not. A 2-year exemption may be granted to the qualified manufacturer. [32 M.R.S. 1733](#).

Penalties. Any manufacturer or supplier that violates the law could face a \$100 fine for each package or packaging component in violation. [32 M.R.S. 1736](#).

Coding of Plastic Containers

No person may distribute, sell, or offer for sale in Maine any plastic bottle or rigid plastic container without a molded, imprinted, or raised label indicating the type of plastic resin used to produce the plastic bottle or rigid plastic container. [32 M.R.S. § 1722](#).

Penalties: A violation shall be a civil violation for which forfeiture of not more than \$100 may be adjudged. Each container in violation constitutes a separate offense. [26 M.R.S. § 1725](#).

Maine Law (Extended Producer Responsibility Bill): Maine has established a [stewardship program for packaging](#). Producers of products will pay into a fund based on the amount and the recyclability of packaging associated with their products. These funds will be used to reimburse municipalities for eligible recycling and waste management costs, make investments in recycling infrastructure, and help Maine citizens understand how to recycle. This program's purpose is to reduce the volume and toxicity and increase the recycling of packaging material. It will provide support to municipalities in their recycling efforts and in doing so improve recycling outcomes for packaging material in Maine.

Massachusetts Law

MA Plastic Containers: No person may distribute or sell any plastic bottle or rigid plastic container in MA unless such product is labeled with a code indicating the plastic resin used to produce the bottle or container placed within a triangle of arrows ([MGL 94 § 323A](#)). "Rigid plastic container" includes any formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin and having a relatively inflexible finite shape or form with a capacity of eight ounces or more but less than five gallons. "Plastic bottle" is defined as plastic container that has a neck that is smaller than the body of the container, accepts a screwtype, snap cap or other closure and has a capacity of sixteen fluid ounces or more, but less than five gallons ([MGL 94 § 321](#)).

Penalties (MA Plastic Containers): Violators are subject to a civil penalty up to \$1,000 for each violation ([MGL 94 § 327](#)).

New Jersey Law:

NJ Hazardous Packaging: Under New Jersey's hazardous packaging law, is unlawful to offer a product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain any lead, cadmium, mercury, or hexavalent chromium that (a) has been intentionally introduced during manufacturing or distribution, or (b) is incidentally present in excess of 100 parts per million by weight (0.01%). ([N.J.S.A § 13:1E-99.47](#)). New Jersey package manufacturers are required to provide certificates of compliance to product manufacturers such as Decathlon; Decathlon must retain this certificate so long as the product is in use. ([N.J.S.A § 13:1E-99.51](#)). It is a defense if Decathlon relies on the written assurance of the packaging manufacturer or distributor (signed by an authorized representative of the manufacturer or distributor) that the packaging complies with New Jersey's hazardous packaging law. ([N.J.S.A § 13:1E-99.54](#)).

Penalties: Violation of New Jersey's hazardous packaging law carries a fine of up to \$25,000 per day. ([N.J.S.A § 13:1E-99.53](#), [N.J.S.A §13:1E-99.54](#)).

New York Law:

NY Hazardous Packaging. Under New York's hazardous packaging law, is unlawful to offer any product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain lead, cadmium, mercury or hexavalent chromium in excess of 100 parts per million by weight (0.01%). ([Environmental Conservation Law art 37, §37-0205](#)). Note that it is a defense to any claim that Decathlon has violated New York's hazardous packaging law to show that Decathlon relied in good faith on the written assurance of the packaging manufacturer that the packaging met the requirements of New York's packaging law. This written assurance must be in the form of a certificate of compliance stating that the packaging is in compliance with Title 2 of Article 37 of the Environmental Conservation Law, and must also be signed by an authorized official from the packaging company.

Penalties: The first violation of New York's hazardous packaging law is punishable by a civil penalty not to exceed \$10,000; second and subsequent violations can result in fines up to \$25,000 for each violation. ([Environmental Conservation Law art 37, § 37-0201](#)).

Texas Law: No packaging specific requirements identified.

Washington Law:

WA Rigid Plastic Containers and Bottles: Rigid plastic containers and plastic bottles sold in Washington must be labeled with the resin type within triangular arrows ([RCW 70.95F](#)). Plastic is defined as material made of polymeric organic compounds and additives that can be shaped by flow. Rigid plastic container is a formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin, and having a relatively inflexible shape or form with a capacity 8 ounces to five gallons. A plastic bottle is a plastic container intended for single use that has a neck that is smaller than the body of the container, accepts a screw-type cap, snap cap, or other closure and has a capacity between 16 fluid ounces and five gallons.

Penalty (WA Rigid Plastic): One who sells a plastic bottle or rigid plastic container without appropriate labeling is subject to a civil penalty of \$50 for each violation, with a maximum of \$500 ([RCW 70.95F](#)). The seller may also be enjoined from continuing violations. Each distribution constitutes a separate offense.

WA Heavy Metals in Packaging: Packages and packaging components must contain less than 100 ppm of lead, cadmium, mercury, and hexavalent chromium ([RCW 70.95G](#)). The limit applies only if the metals were intentionally introduced as elements during manufacturing or distribution. Manufacturers must develop a certificate of compliance stating that its package or packaging component is in compliance with the metal requirements. Manufacturers must keep these certificates three years after the package's last sale or distribution, and certificates must be provided to the Washington Department of Ecology upon request.

Penalties (WA Heavy Metals Packaging). The Department of Ecology may prohibit the sale of any package for which a manufacturer has failed to respond to a request for a certificate of compliance within sixty days ([RCW 70.95G](#)).

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, which must undergo more stringent testing, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries, please see the "Batteries" card.

For requirements applicable to products that contain battery chargers, please see the "Sun Charger, Electrical Charger, USB Charger" card.

See the Electrical Aspects section of this card for information on Nationally Recognized Testing Laboratories for electronic approvals (not mandatory).

California Proposition 65: Proposition 65 does not require testing, however, if a company is aware that a listed chemical is present and wishes to determine that a warning label is not required (i.e., to justify a decision not to provide a warning), testing may be conducted at any outside laboratory that is familiar with Proposition 65.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the packaging technical requirements section above.

Federal Law:

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 USC 312\(b\)](#).

In addition, the act of selling or leasing, offering to sell or lease, or importing a digital device that has not gone through the appropriate FCC equipment authorization procedure that is a violation of the Commission's rules and federal law, and may be subject to:

- o forfeiture of all non-compliant equipment
- o an administrative fine of up to 10,000/day per violation
- o up to \$100,000/\$200,000 criminal penalty for an individual/ organization
- o a criminal fine totaling twice the gross gain obtained from sales of the non-compliant equipment

Other than knowing and willful or repeated violations, most violations are settled via a negotiated civil penalty. See recent settlements for FCC enforcement actions related to radio frequency devices here: <http://transition.fcc.gov/eb/marketing/>.

Please see the Batteries card for penalties related to violation of battery regulations.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. There are also specific requirements for battery charging system under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 CCR § 1609\(a\)\(2\)](#). The enforcement regulations provide for civil penalties up to a maximum of \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the batteries card for additional details.

California Proposition 65: Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

Illinois Law (flame retardants): A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation ([410 ILCS 48](#)).

Maine Law (toxic chemicals): Violators may be subject to a \$2,500-\$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100-\$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (lead): This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following provisions apply as penalties for violations of this section.

A. For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.

B. For all other violations the following provisions apply as penalties for violations of this section.

(1) For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.

(2) For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.

(3) For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

(4) A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law (lead): A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation ([MGL 111.196](#), [105 CMR 460](#)). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (banned hazardous substances): Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a fine between \$600 and \$3,000 ([MGL 94B § 4](#)). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product ([MGL 94B § 5](#)). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New York Law (flame retardants): Violation of New York's law regarding brominated flame retardants is also a misdemeanor; each product made, sold or offered for sale is a separate violation. ([Environmental Conservation Law § 37-0111\(5\)](#)).

Washington Law (PBDE ban): The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs) ([RCW 70.76](#)). If compliance is not achieved one year after the warning letter is sent, the Department of Ecology may assess civil penalties: up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Comments

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery charging systems, please see the "Batteries" card.

California (CEC Battery Charging System): Under the California Appliance Energy Efficiency Regulations for Battery Charger Systems ("BCS"), BCS must be certified prior to sale or offer for sale in California. Certified products will be listed on the California Energy Commissions Appliance Efficiency Database of certified BCS products. If a product in this category includes a BCS, please see the "Sun Charger, Electrical Charger, USB Charger" card for additional information on BCS certification.

Illinois (electronics recycling): "Covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. [415 ILCS 151](#). Note that this law is repealed on December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). A manufacturer may register on the Illinois EPA Website for [Electronic Waste Recycling](#). The manufacturer's name must also be permanently affixed to, and readily visible on, the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

(1) a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

(2) the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year. [415 ILCS 151/1-30\(a\)](#).

Massachusetts Law (mercury-added products): No mercury-added product shall be offered for final sale or use or distributed in the commonwealth without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section ([MGL 21H](#)).

New York Law: See requirements in the "Environment" section of this card regarding registering as a manufacturer of "covered electronic equipment."

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

[UL voluntary standards](#) are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered

certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery charging systems, please see the "Batteries" card.

California (CEC Battery Charging System): If a product in this category includes a battery charging system ("BCS") as defined above, please see the "Sun Charger, Electrical Charger, USB Charger" card for additional information regarding certification of BCS under the California Energy Commission's standards.

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Federal Law:

General Requirements: All U.S. imports must generally comply with country of origin marking regulations found in Marking of Imported Articles and Containers law ([19 U.S.C. § 1304](#)) and regulations ([19 C.F.R. § 134](#)). When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

For requirements applicable to unintentional radiators, please see the "Sun Charger/Electrical Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For federal requirements applicable to products that contain battery chargers, please see the "Batteries" card.

See the Importation Rules Insert for additional information.

Documents

What are the required documents ?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For federal requirements applicable to products that contain battery chargers, please see the "Batteries" card.

Entry Documents (for U.S. Imports generally):

Within 15 calendar days of the date that a shipment arrives at a U.S. port of entry, entry documents must be filed at a location specified by the port director. These documents are:

- Entry Manifest (CBP Form 7533) or Application and Special Permit for immediate Delivery (CBP Form 3461) or other form of merchandise release required by the port director,
- Evidence of right to make entry,
- Commercial invoice or a pro forma invoice when the commercial invoice cannot be produced,
- Packing lists, if appropriate,
- Other documents necessary to determine merchandise admissibility.

If the goods are to be released from CBP custody at the time of entry, an entry summary for consumption must be filed and estimated duties deposited at the port of entry within 10 working days of the goods' entry.

See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf> at pp. 12 and 35-37.

Time period

In which time period may we obtain the right to import ?

None specified. But see tips for new importers and exporters at <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection

OPA/CBP INFO Center

1300 Pennsylvania Avenue N.W., MS: 1345

Washington, DC 20229

United States of America

Comments

Comments

Helpful CBP publication: <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>

OPA/CBP INFO Center Phone contact information:
General Inquiries: 877-227-5511

International Callers: 202-325-8000

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

U.S. CBP inspects imports generally. FCC also receives information regarding shipments falling within certain tariff codes and may examine or seek additional information regarding same.

FCC representatives may examine or test any radio frequency device that is imported, including intentional or unintentional radiators. If the radio frequency device has already entered the U.S., the subsequent owners must, upon request within one year of the date of entry, make that device available for examination or testing by the FCC. [47 CFR § 2.1207](#).

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section.

Documents

What are the required documents ?

See Certifications/Registrations section.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

California Law: None identified, unless a Proposition 65 warning is required for the product under California law and Decathlon chooses to provide the warning via a sign or shelf tag in the store rather than by a marking on the product packaging.

Illinois Law (electronics recycling): No retailer may sell any portable digital music player in Illinois unless the computer is labeled with a brand and the label is permanently affixed and readily visible and the manufacturer is registered with the Illinois Environmental Protection Agency and has paid the required registration fee ([415 ILCS 150](#)).

Retailers must also provide each residential consumer with information from the Agency's website that provides information detailing where and how a consumer can recycle a CED or return a CED for reuse. In addition, manufacturers must develop and maintain a consumer education program that complements and corresponds to the primary retailer-driven campaign requirements described above. The education program must promote the recycling of electronic products and proper end-of-life management of the products by consumers.

Massachusetts Law (mercury-added products): No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows ([MGL 21H, 310 CMR 75](#)). The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. Manufacturers of products that contain an irremovable mercury-containing lamp used for backlighting shall meet the product labeling requirements of this section by placing the label on the product or its care and use manual. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the

manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of "mercury-added consumer products" (see definitions section) must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Display on internet

Is there some specific mentions to display the product on internet ?

None identified.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

See the "What are the mandatory labelling on the notice" section of this card.

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

None identified.

Documents

[Decathlon - Chemical Substances Insert.pdf](#)

[Decathlon - Importation Rules Insert.pdf](#)